

1.

CASE #	CASE NAME	HEARING NAME
CVRI2405661	MAGDALENO vs CITY OF LAKE ELSINORE	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling:

Summary of Ruling: The Court grants the unopposed motion for summary judgment in favor of Defendant, Enterprise FM Trust LSR and against Plaintiff, Jason Maxwell Logan Magdaleno.

I. FACTUAL/PROCEDURAL CONTEXT

Plaintiff, Jason Maxwell Logan Magdaleno, alleges he was injured and damaged due to a motor vehicle/bicycle collision that occurred on 4/12/24 on South Collier Avenue in Lake Elsinore. Plaintiff filed his Complaint on 10/13/24 alleging two causes of action for motor vehicle and general negligence.

EVIDENCE SUPPORTING MOTION:

A declaration was filed by Steven R. Jensen, counsel of record for Defendant, Enterprise FM Trust LSR (Enterprise), with exhibits (Separate Index of Exhibits [SIE] Ex. "J"): Plaintiff, Jason Maxwell Logan Magdaleno's Complaint (Dec.Jensen ¶ 4, SIE Ex. "A"); Defendant, EVMWD's Answer (*Id.*, ¶ 5, SIE Ex. "B"); EVMWD's Amended Answer (*Id.*, ¶ 6, SIE Ex. "C"); EVMWD's First Amended Cross-Complaint. (*Id.*, ¶ 7, SIE Ex. "D"); a copy of 49 USC § 30106 (*Id.* ¶ 8, SIE Ex. "E"); Cross-Complainant, Jennifer Marie Aguirre's Response to Form Interrogatories (Set One) (*Id.* ¶ 9, SIE Ex. "K".)

A declaration was submitted for Shane Atkisson, Maintenance Manager for EVMWD with exhibits (SIE Ex. "I"): Open-End (Equity) Lease Schedule and a copy of the Master Lease Agreement between EVMWD and Enterprise dated 9/28/20 for a 2020 Ford Escape (Dec.Atkisson ¶ 3, SIE Ex. "F"); a copy of the Cal. Vehicle Registration Card for the same vehicle. (*Id.* SIE Ex. "G".)

A declaration was submitted for Ryan Williams, Risk Manager for Enterprise Fleet Management, a servicer for Enterprise, which establishes the relationship between EVMWD and Enterprise. (SIE, Ex. "H".)

The declarations and exhibits are sufficiently authenticated.

II. LEGAL ANALYSIS

Defendant's Burden

A defendant has met his or her burden of showing that a cause of action has no merit if that party has shown that one or more elements of the cause of action, even if

not separately pleaded, cannot be established, or that there is a complete defense to that cause of action. (CCP §437c(p)(2).)

Opposing Party's Burden

Once the defendant has met that burden, it shifts to plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or defense thereto. (CCP §437c(p)(2).) The moving party has met its initial burden regardless of whether the opposing party files counter-declarations. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; *Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468.) Where a defendant fails to meet its burden, the motion must be denied; plaintiff need not make any showing at all. (*Id.*)

In addition, the opposing party may not rely upon the allegations or denials in its pleadings, but must “set forth the specific facts showing that a triable issue of material fact exists.” (CCP § 437c(p)(2).) Claims and theories not supported by admissible evidence do not raise triable issues of fact. (*Rochlis v. Walt Disney Co.* (1993) 19 Cal.App.4th 201, 219, *disapproved on another ground in Turner v. Anheuser–Busch, Inc.* (1994) 7 Cal.4th 1238.)

A motion for summary judgment may be granted where it is shown that the “action has *no* merit or that there is no defense to the action or proceeding.” (CCP § 437c(a).) A motion for summary adjudication can be granted only if it *completely* disposes of the cause of action, affirmative defense, claim for damages or issue of duty. (CCP § 437c(f)(1).) Although summary judgment/adjudication is no longer considered a “disfavored” procedure, the rule continues that the moving party’s evidence must be strictly construed, while the opposing party’s evidence must be liberally construed. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal. App. 4th 832.)

1st Cause of Action for General Negligence and 2nd Cause of Action for Motor Vehicle Negligence

The elements of negligence are: (1) legal duty owed to plaintiff to use due care; (2) breach of duty; (3) causation; and (4) damage to plaintiff. (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318.)

Plaintiff has established the following facts: On 10/14/24, Plaintiff, Magdaleno, filed his Complaint concerning the accident. (Undisputed Material Fact [UMF] No. 1.) EVMWD’s vehicle collided with Plaintiff’s “vehicle” (bicycle). (UMF No. 2.) Defendant Jennifer Marie Aguirre was driving the motor vehicle registered to EVMWD. (UMF No. 3.) Aguirre was an employee of EVMWD at the time of the accident. (UMF No. 4.) She was working in the course and scope of her employment at the time of the accident. (UMF No. 5.) Plaintiff was injured due to the accident. (UMF No. 7.) The accident occurred on 4/12/14. (UMF No. 9.)

The motor vehicle involved was a new 2020 Ford Escape, which was under a written lease to EVMWD. (UMF Nos. 10, 13, 18.) The vehicle was owned, and title was held by Enterprise but was under EVMWD’s complete dominion and control. (UMF No.

11.) Enterprise is a named Defendant but, the term “LSR” is a short-hand reference to “Lessor” and is not part of the actual name of the vehicle owner. (UMF No. 12.) Enterprise is in the business of leasing vehicles to businesses and the general public. (UMF Nos. 13, 15-17.) Enterprise has no record of information about or awareness of any operating or safety problems with the subject vehicle at the time of the lease. (UMF No. 19.) Enterprise was not involved with the subject vehicle between the start of the lease and the date of the subject accident and is not affiliated with EVMWD. (UMF Nos. 20-23.)

Plaintiff asserts that 49 USC § 30106(a) provides:

In General.- An owner of a motor vehicle that rents or leases the vehicle to a person (or an affiliate of the owner) shall not be liable under the law of any State or political subdivision thereof, by reason of being the owner of the vehicle (or an affiliate of the owner), for harm to persons or property that results or arises out of the use, operation, or possession of the vehicle during the period of the rental or lease, if – (1) the owner (or an affiliate of the owner) is engaged in the trade or business of renting or leasing motor vehicles; and (2) there is no negligence or criminal wrongdoing on the part of the owner (or an affiliate of the owner.)

Enterprise argues that the foregoing undisputed facts establish that its business falls squarely within the terms of this statute and bears no liability for Plaintiff’s alleged damages. Enterprise was in the business of leasing motor vehicles to businesses and the general public at the time of the accident. (UMF No. 13.) The subject vehicle was under a formal, written lease to EVMWD at the time of the accident. (UMF Nos. 10, 16.) As a result, Enterprise is entitled to statutory immunity under 49 USC § 30106. Enterprise had no possession or control over the subject vehicle after it was leased to EVMWD. (UMF Nos. 11, 15, 17, 20.) And, Enterprise is not affiliated with EVMWD and has no control over management policies of EVMWD and is not related to EVMWD in any manner beyond the lessor-lessee relationship related to vehicles. (UMF Nos. 21-23.) Moreover, there is no evidence to establish that Enterprise was negligent relating to the accident. Based on the foregoing, Defendant has established its initial burden.

However, Plaintiff has not opposed this motion. He offers no evidence that would raise a triable issue of material fact as to Enterprise’s liability relating to the subject accident. As a result, the motion is granted as to Enterprise.

III. RECOMMENDATION

Based on the foregoing, Defendant, Enterprise FM Trust LSR, is entitled to summary judgment in its favor, which Plaintiff has failed to oppose.